

COMPLAINT NOS. 2021-00188-82892; 2021-00213-82892

IN THE MATTER OF

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**BEFORE THE TEXAS BEHAVIORAL
HEALTH EXECUTIVE COUNCIL**

**THE TEXAS STATE BOARD
OF EXAMINERS OF**

CALEB TAYLOR, LPC-ASSOCIATE

PROFESSIONAL COUNSELORS

AGREED ORDER

Pursuant to the authority under §507.305 of the Texas Occupations Code, 22 Texas Administrative Code §884.12(e), and §2001.056 of the Government Code, the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **CALEB TAYLOR** ("Respondent") and which constitutes a full settlement and compromise of the complaints currently pending against Respondent before the Council in the above-referenced and numbered matters.

FINDINGS OF FACT

1. Respondent is licensed as a licensed professional counselor-associate (#82892) in the State of Texas and is, therefore, subject to the jurisdiction of the Council.
2. Around January and February 2021, Respondent provided therapeutic services to women at an inpatient residential treatment facility. Four (4) clients reported boundary violations occurring behind closed doors, including sexually inappropriate comments; encouraging two (2) clients to lower their pants to show Respondent tattoos on either the buttocks or upper thigh; offering a pen to a client in front of his crotch in a sexually provocative fashion; and telling a client he wanted give her his personal phone number once she was discharged from inpatient treatment.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council Rules 22 Tex. Admin. Code § 681.41(l)(m)(1-2) regarding professional boundaries and

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non-therapeutic relationships, and 22 Tex. Admin. Code § 681.42 (p)(2) regarding protecting clients from physical or emotional harm.

4. This Agreed Order is a Settlement Agreement under the Texas Rules of Evidence and is not admissible for the purposes of civil or criminal litigation. By entering into this Agreed Order, Respondent does not admit the foregoing Findings of Fact or Conclusions of Law, but agrees to resolve this matter to avoid the expense and uncertainty of further proceedings.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent, by signing this Agreed Order, hereby voluntarily and permanently **RESIGNS** his license as a professional counselor-associate (#82892) in lieu of further adjudication by the Council on these matters.
2. Respondent shall return his license to the Council no later than fourteen (14) days after the date this order is ratified.
3. The Council will not consider an application for licensure from Respondent and Respondent agrees not to apply for any new license from the Council for six (6) years from the effective date of this Order.
4. If Respondent seeks to apply for a license with the Council in the future, Respondent will be subject to conditions of eligibility to be imposed by the Council at that time.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

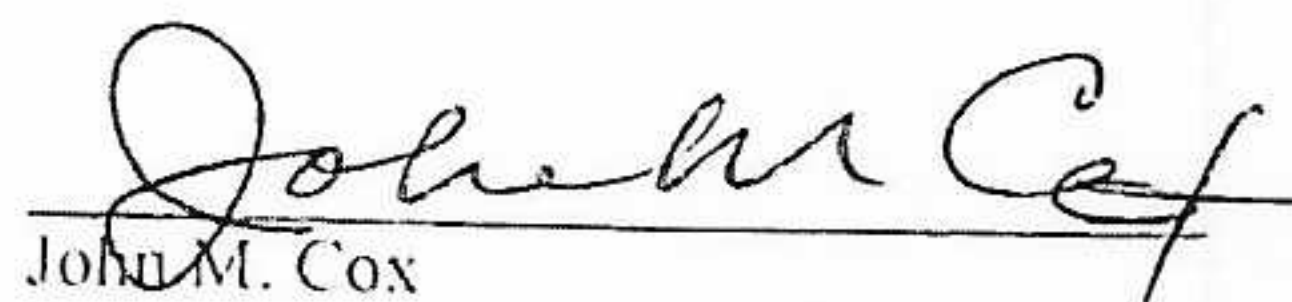
WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO

SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:



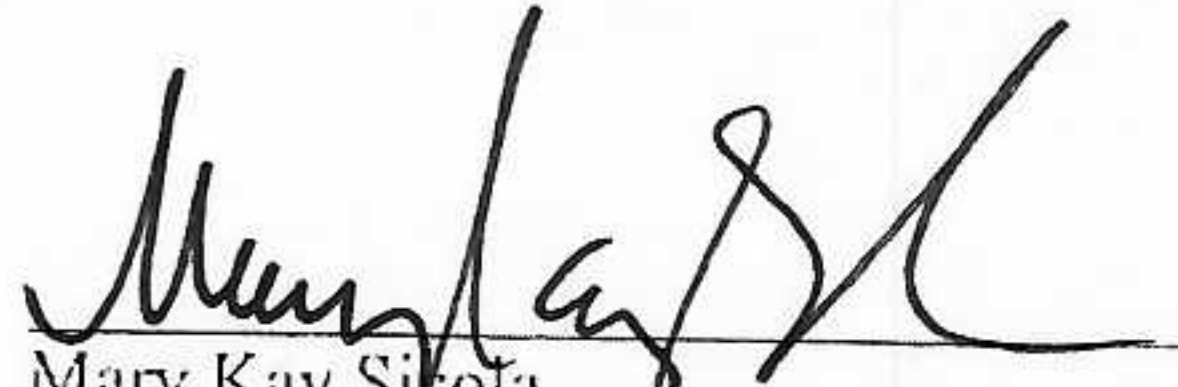
John M. Cox
Texas Bar No. 04949900
Attorney for Respondent
John M. Cox & Associates, P.C.
325 N. Saint Paul Street
Dallas, Texas 75201-3885

DATE SIGNED: 8/18/21

AGREED: 
Caleb Taylor (#82892)

DATE SIGNED: 8/18/2021

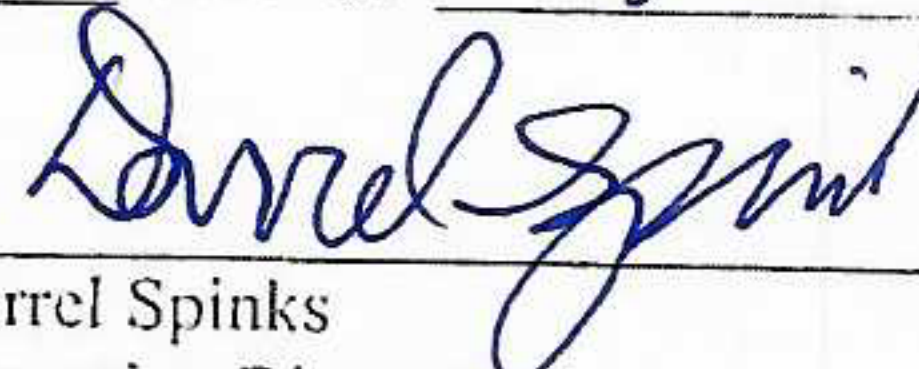
FOR THE STAFF OF THE COUNCIL:



Mary Kay Sicola
Texas Bar No. 18339800
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 8/18/2021

APPROVED, RATIFIED, AND ENTERED THIS 18th DAY OF August, 2021.



Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council